

April 8, 2025

Representative Nathan Sosa, Chair
Oregon House Committee on Commerce and
Consumer Protection
900 Court St. NE, H-280
Salem, Oregon 97301

Representative Farrah Chaichi, Vice Chair
Oregon House Committee on Commerce and
Consumer Protection
900 Court St. NE, H-478
Salem, Oregon 97301

Representative Virgle Osborne, Vice Chair
Oregon House Committee on Commerce and
Consumer Protection
900 Court St. NE, H-375
Salem, Oregon 97301

RE: Letter in Opposition to Oregon SB 2008

Dear Chair Sosa, Vice Chair Chaichi, and Vice Chair Osborne:

On behalf of the undersigned trade associations and companies, we respectfully oppose HB 2008.¹ Our organizations care deeply about consumer privacy protections and choices. If enacted, HB 2008 would eliminate choices that are presently available to Oregon residents and deprive them of access to critical services and benefits that depend on location data. We therefore ask the House Committee on Commerce and Consumer Protection (“Committee”) to decline to advance the bill any further in the legislative process.

I. EXISTING LAW PROTECTS OREGON RESIDENTS AND EMPOWERS THEM TO CONTROL PROCESSING OF LOCATION DATA

Under Oregon’s existing privacy law, consumers must consent before a controller may process “sensitive data,” including location data related to them.² HB 2008 proposes to remove Oregon consumers’ ability to provide such consent by flatly banning all sales of location data without exception and for use in targeted advertising. This approach removes choices from consumers and would diverge from the majority of states which have enacted an omnibus privacy law to date.

II. PROHIBITING THE SALE OF LOCATION DATA WOULD ELIMINATE CRITICAL PROTECTIONS AND BENEFITS FOR CONSUMERS

HB 2008 would have unintended downstream effects on vital services which depend on location data and benefit Oregon residents. If enacted, the bill would cause location data to lose

¹ Oregon HB 2008 (2025 Reg. Sess.), located [here](#).

² Or. Rev. Stat. §§ 656A.570(18)(a)(C); 578(2)(b).

much of its utility in the marketplace, making this data less likely to be available and consequently less procurable for use for vital purposes including emergency alerts and fraud protection.

Location data powers important emergency notices, particularly AMBER alerts and severe weather notices, allowing these notices to be immediately displayed to users in the impacted area on any device they are using. If HB 2008 becomes law, Oregonians may lose access to emergency alerts for floods, wildfires, and other community emergencies, as these important, real-time alerts rely on the disclosure of location data to properly function. These types of services depend on acquiring data on the market from other parties.

Location data also enables effective fraud prevention to protect consumers and businesses. Financial institutions, retailers, and other companies rely on anti-fraud services that include location data provided by third parties. The disclosure of location data allows anti-fraud and identity protection services to flag suspicious behavior and protect vulnerable communities. For example, companies can more easily detect credit card theft or fraud if they or their service providers have access to location data showing that a consumer is not in the location where a purchase is being made. If passed, HB 2008 would impede entities' ability to use and disclose location data to prevent fraudulent activity and reach out to consumers to confirm their purchases.

III. CONSENTED LOCATION DATA FOR TARGETED ADVERTISING PROVIDES VALUE TO CONSUMERS

The use and disclosure of location data allows individuals to receive advertising and communications in the right time and at the right place. Location data is an integral component of advertising personalization and marketing that allows companies to reach consumers with relevant content and ads, enabling consumers to learn about goods and services that are near to them. This benefit is especially meaningful for Oregon's small and medium-sized businesses. Without the ability to use and disclose location data for advertising purposes, subject to consumers' opt-in consent, businesses will have a more difficult time, and face higher costs, reaching individuals with relevant marketing, and Oregonians will not be alerted to products and services they desire that are near to them.

* * *

We ask you to refrain from advancing HB 2008 any further in the legislative process, as the bill would deprive Oregon consumers of the ability to exercise choices and receive useful services and messaging. Thank you for your consideration of this letter.

Sincerely,

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CC: Oregon HB 2008 Bill Sponsors
Members of the Oregon House Committee on Commerce and Consumer Protection

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